

26CMCV00670 26CMCV00670

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-09-28

Motion: DEFENDANT'S MOTION TO STRIKE PUNITIVE DAMAGES

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Case Number: 26CMCV00670 Hearing Date: September 28, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

CRISTINA MURO,

Plaintiff,

vs.

ARTICS,

INC., et al.,

Defendants.

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CASE NO: 26CMCV00670

[TENTATIVE]

ORDER RE: DEFENDANT'S MOTION TO STRIKE PUNITIVE DAMAGES

Dept.

A

DATE:

September 28, 2026

TIME:

8:30 A.M.

Complaint:

04/08/2026

Trial:

08/07/2028

MOVING

PARTY: Defendants Artics,
Inc. and Christopher Brown

RESPONDING

PARTY: Plaintiff Cristina Muro

1. Background

This is a habitability action. Plaintiff Cristina Muro ("Plaintiff") alleges that defendants Artics, Inc. and Christopher Brown (collectively, "Defendants") owned, managed, maintained, and controlled the property located at 1217 N Bullis Road, Compton, CA 90221 (the "Property"). Plaintiff alleges that Defendants received notice of defective conditions at the Property, including a defective stairwell, an unrepaired kitchen sink leak, and cockroach and termite infestations, but that Defendants failed to repair these conditions. Plaintiff alleges that after Defendants received notice of the defective stairwell, the defect in the stairwell caused Plaintiff to fall and caused Plaintiff personal injury.

2. Discussion

Defendants move to strike punitive damages from the complaint. Defendants contend that Plaintiff has failed to adequately allege malice, oppression, or fraud, as is required to request punitive damages. In opposition, Plaintiff contends that the complaint adequately alleges malice and oppression.

Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (Code of Civ. Proc., § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322, subd. (b).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782.)

In

order to state a prima facie claim for punitive damages, a complaint must set forth the elements as stated in the general punitive damage statute, Civil Code section 3294. (College Hospital, Inc. v. Superior Court (1994) 8 Cal.4th 704, 721 (College Hospital).) These statutory elements include allegations that the defendant has been guilty of oppression, fraud or malice. (Civ. Code, § 3294, subd. (a).)

“In

order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff. [Citations.] In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth. [Citations.] In ruling on a motion to strike, courts do not read allegations in isolation. [Citation.]” (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) “The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. [Citation.] Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim. [Citation.]” (Grieves v. Superior Court (1984) 157 Cal.App.3d 159, 166.)

“Malice is

defined in the statute as conduct intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (College Hospital, supra, 8 Cal.4th at p. 725 [examining Civ. Code, § 3294, subd. (c)(1)].) “A conscious disregard of the safety of others may constitute malice within the meaning of section 3294 of the Civil Code. In order to justify an award of punitive damages on this basis, the plaintiff must establish that the defendant was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences.” (Taylor v. Superior Court (1979) 24 Cal.3d 890, 895-896.)

“As amended to

include [despicable], the statute plainly indicates that absent an intent to injure the plaintiff, ‘malice’ requires more than a ‘willful and conscious’ disregard of the plaintiffs’ interests. The additional component of ‘despicable conduct’ must be found.” (College Hospital, supra, 8 Cal.4th at p. 725.) The statute’s reference to despicable conduct represents a “new substantive limitation on punitive damage awards.” (Ibid.) Despicable

conduct is "conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people." Such conduct has been described as 'having the character of outrage frequently associated with crime.' (Tomaselli v. Transamerica Ins. Co. (1994) 25 Cal.App.4th 1269, 1287.)

The complaint

alleges various habitability violations that were not repaired after notice was given, and that failure to repair these habitability violations caused Plaintiff personal injury. Although a reasonable juror might find that the risk of injury from failure to repair the defective staircase was foreseeable, it is not necessarily probable. In order to establish an entitlement to punitive damages, a plaintiff must plead that the dangerous consequences of the defendant's conduct was probable, not merely foreseeable. (See Dawes v. Superior Court (1980) 111 Cal.App.3d 82, 89.) Here, no reasonable juror could find that the risk of injury from failure to repair a defective staircase is probable, rather than merely foreseeable. Furthermore, failure to repair habitability violations on its own falls short of having the character of outrage frequently associated with crime, as is required to show despicable conduct under College Hospital.

Plaintiff

contends that habitability violations may support punitive damages under Stoiber v. Honeychuck (1980) 101 Cal.App.3d 903 (Stoiber). However, Stoiber is inapposite. In Stoiber, the court found that the plaintiff had alleged intentional nuisance, which is a cause of action for which punitive damages are recoverable. (Id. at p. 920.) Here, Plaintiff has not alleged a cause of action for nuisance. Moreover, Stoiber does not stand for the proposition that punitive damages are available in any habitability violation action.

The court will

therefore strike the request for punitive damages from the complaint, with leave to amend.

3. Conclusion

Based on the

foregoing, the court GRANTS Defendants' motion to strike punitive damages from the complaint, with leave to amend. Plaintiff may file an amended complaint not

later than October 8, 2026

Defendants are ordered to give notice.

IT IS SO ORDERED.

DATED: September 28, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court